

BECM 3107

LAW OF TORT

Term Final Exam Study Guide

Easy explanations | সহজ ব্যাখ্যা

Memorizing techniques | মনে রাখার কৌশল

Bangla meanings | প্রয়োজনীয় বাংলা অর্থ

Exam questions and quick revision

Based on the uploaded BECM 3107 course slides

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Prepared as a focused revision companion

A How to Use This Guide

Read the easy explanation first, then memorize the code, then test yourself.

এই গাইডটি মূল slide-এর terminology এবং sequence অনুসরণ করে তৈরি করা হয়েছে। প্রতিটি topic-এর সাথে সহজ বাংলা ব্যাখ্যা, mnemonic, key vocabulary এবং পরীক্ষায় লেখার কাঠামো দেওয়া আছে।

3R

Read -> Recall -> Review

প্রথমে পড়ুন, তারপর বই বন্ধ করে মনে করুন, শেষে ভুলগুলো revise করুন।

Recommended revision cycle:

1. First reading: understand the concept and underline legal terms.
2. After 15 minutes: close the guide and write the mnemonic from memory.
3. Next day: answer one short question without looking.
4. Before exam: revise only the summary tables, cases, and vocabulary.

B Course Map

Part	Topic	Main focus
1	Tort of Negligence	Duty of care, breach, causation, damage
2	Strict Liability Torts	Liability without proving fault
3	Remedies in Tort	Judicial and extrajudicial remedies
4	Defenses in Tort	Contributory negligence, consent, illegality, necessity

Core idea: Tort law is mainly about a civil wrong, the harm caused, responsibility, compensation, and available defenses.

1 What Is Tort?

Start with the meaning, the parties, and the objective.

Tort is presented in the slides as a civil wrongdoing that injures another person's physical well-being, property, emotional health, business, or reputation. The main objective is compensation for the damage.

সহজ বাংলা: Tort হলো এমন একটি দেওয়ানি অন্যায়, যার কারণে অন্য ব্যক্তির শরীর, সম্পত্তি, মানসিক স্বাস্থ্য, ব্যবসা বা সুনামের ক্ষতি হয়। সাধারণত ক্ষতিগ্রস্ত ব্যক্তি আর্থিক ক্ষতিপূরণ চায়।

Term	Meaning in the slides	বাংলা অর্থ
Plaintiff	Victim / person bringing the claim	বাদী বা ক্ষতিগ্রস্ত ব্যক্তি
Defendant	Wrongdoer / person against whom claim is made	বিবাদী বা অভিযুক্ত অন্যায়কারী
Compensation	Money awarded for damage	ক্ষতিপূরণ
Civil wrongdoing	A private wrong addressed by civil law	দেওয়ানি অন্যায়

P-D

Plaintiff = Person harmed; Defendant = Doer of the wrong

P = ক্ষতিগ্রস্ত পক্ষ, D = যার বিরুদ্ধে দাবি।

Possible exam question: Define tort and state its objective.

- Give the definition as a civil wrongdoing.
- Mention the types of interests harmed: body, property, emotion, business, reputation.
- State that the objective is compensation for damage.

2 Tort of Negligence

Negligence means falling below the legally expected standard of care.

The tort of negligence is committed when a person fails to meet the standard of care expected by law and another person is injured or suffers loss as a result.

সহজ উদাহরণ: একজন contractor সাইটে খোলা গর্তের চারপাশে barrier দেয়নি। একজন visitor পড়ে আহত হলো। এখানে duty, breach এবং damage প্রমাণ হলে negligence claim হতে পারে।

The slides identify three essential elements:

1. **Duty of care** - the defendant legally owed care to the plaintiff.
2. **Breach of duty** - the defendant fell below the required standard.
3. **Damage resulting from the breach** - the breach caused actual harm.

DBD

Duty -> Breach -> Damage

দায়িত্ব ছিল, দায়িত্ব ভাঙা হয়েছে, এবং সেই কারণে ক্ষতি হয়েছে।

Golden rule: If one of the three elements is missing, a negligence claim normally fails.

3 Duty of Care

The slides explain its development through three stages.

Duty of care asks whether the defendant was legally required to take reasonable care for the plaintiff. In construction, engineers, contractors, and designers must consider clients, users, and the public who may be closely affected by their work.

Stage	Legal idea	Easy meaning
Neighbour Principle	Donoghue v Stevenson (1932)	Take reasonable care to avoid foreseeable harm to people closely and directly affected by your acts or omissions.
Two-Stage Test	Proximity + policy reasons	First ask whether the parties are sufficiently close; then ask whether policy should limit or deny the duty.
Three-Stage Test	Caparo Industries v Dickman (1990)	Ask foreseeability, proximity, and whether imposing the duty is fair, just, and reasonable.

FPF

Foreseeability - Proximity - Fair, just and reasonable

ক্ষতি অনুমানযোগ্য কি? সম্পর্ক কাছাকাছি কি? Duty আরোপ করা ন্যায্য কি?

Key Bangla meanings:

- Foreseeability = ক্ষতি আগে থেকে যুক্তিসঙ্গতভাবে অনুমান করা সম্ভব হওয়া
- Proximity = পক্ষগুলোর মধ্যে ঘনিষ্ঠ বা সরাসরি সম্পর্ক
- Policy reasons = বৃহত্তর সামাজিক বা আইনি কারণে duty সীমিত করার বিবেচনা
- Acts or omissions = করা কাজ অথবা না-করা কাজ

Possible exam question: Explain the three-stage test for duty of care.

- Name Caparo Industries v Dickman (1990).
- Explain foreseeability, proximity, and fair-just-reasonable.
- Apply the test briefly to a construction safety example.

4 Breach of Duty and Professional Standard

A duty is breached when conduct falls below the expected standard.

After proving duty of care, the plaintiff must show that the defendant breached it. Breach means the defendant fell below the standard of behaviour expected from a person undertaking that activity.

Situation	Expected standard	Possible breach
Driving	Reasonably careful road user	Careless driving that endangers others
Medical treatment	Reasonably competent doctor	Treatment below accepted professional competence
Engineering work	Reasonably competent engineer	Unsafe design, inspection, or supervision below professional standard
Architecture	Reasonably competent architect	Design or professional conduct below comparable expertise

Professional rule: A professional is not judged as an ordinary person. The comparison is with a reasonably competent professional having similar training and expertise.

S-S-D

Special skill -> Standard of competent professional -> Damage

বিশেষ দক্ষতা থাকলে একই পেশার competent ব্যক্তির standard দিয়ে বিচার হবে।

Possible exam question: What is the professional standard of care?

- Mention special professional skills.
- State the standard of a reasonably competent professional.
- Explain that comparison is with similar training and expertise.
- Link falling below the standard with resulting damage.

5 Causation and Damage

The breach must directly cause the damage.

Causation is the link the plaintiff must prove between the breach of duty and the damage. Careless conduct alone is not enough: if no damage is caused, there is no claim in negligence.

B -> C -> D

Breach -> Causal link -> Damage

দায়িত্ব ভাঙা কাজটি সরাসরি ক্ষতির কারণ হতে হবে।

But-for test: Ask: Would the harm have occurred but for the defendant's negligence? If the answer is no, the negligence factually caused the harm.

Chain of causation:

- The chain should not be broken by a new intervening event.
- The Latin expression is novus actus interveniens - a new intervening act.
- Sometimes damage has multiple causes, which can make the legal analysis difficult.

Question	If No	If Yes
Did the defendant owe a duty of care?	No negligence claim	Move to breach
Did the defendant fall below the reasonable standard?	No negligence claim	Move to causation
Was the damage caused by the defendant?	No negligence claim	Claim may exist; then consider defenses

Possible exam question: Explain the but-for test and chain of causation.

- Define factual causation using the but-for question.
- State that damage must be a direct result of negligence.
- Mention novus actus interveniens and multiple causes.

6 Types of Harm Protected by Negligence

The slides identify three broad categories.

Code	Type of harm	বাংলা ব্যাখ্যা
P	Personal injury	শারীরিক আঘাত এবং psychiatric injury
P	Property damage	বাড়ি, যন্ত্র, উপকরণ বা অন্য সম্পত্তির ক্ষতি
E	Economic loss	টাকা, আয়, সম্পদের মূল্য বা ব্যবসায়িক লাভের ক্ষতি

PPE

Personal injury - Property damage - Economic loss

ব্যক্তি, সম্পত্তি, অর্থনৈতিক ক্ষতি।

Psychiatric injury (nervous shock):

- Physical injury can clearly support a tort claim.
- Psychiatric injury is treated more carefully by law.
- Duty of care is used to limit too many or unfair claims.
- Similar caution is applied to economic loss claims.

Memory picture: Think of three protection circles: Person - Property - Pocket.

7 Economic Loss and Pure Economic Loss

Financial loss may be connected to physical damage or may stand alone.

Economic loss includes financial consequences such as losing a valuable asset or losing income because a person cannot work. Pure economic loss refers to financial loss that is not directly tied to recoverable physical injury or property damage.

Case Spartan Steel v Martin (1972)

The defendants negligently cut an electric cable, causing a 14-hour power cut. Metal in the furnace solidified and the factory temporarily stopped production.

Claim head	Nature	Court result in slides
Damage to metal in furnace	Physical damage to property	Recoverable
Profit on the damaged metal	Economic loss arising from property damage	Recoverable
Profit on metal that could not be processed during shutdown	Pure economic loss	Not recoverable

Exam conclusion: The law of tort is reluctant to allow claims for pure economic loss. Distinguish financial loss flowing from physical damage from financial loss standing alone.

D-L-P

Damage to metal - Linked profit - Pure profit loss

প্রথম দুইটি recoverable; pure profit loss নয়।

Possible exam question: Discuss pure economic loss with reference to Spartan Steel v Martin.

- State the facts: cable cut, power cut, furnace metal solidified, factory shutdown.
- Separate the three heads of loss.
- State that the first two were recoverable but the third was not.
- Finish with the reluctance to allow pure economic loss.

8 Strict Liability

Liability may exist without proving negligence or fault.

Strict liability means liability without fault. A person may be legally responsible even when carelessness is not proved. The slides emphasize ownership or control rather than fault.

Example from slides: A current owner may be required to clean contaminated land even if the contamination occurred before the purchase.

Dangerous things on land:

- If a person keeps something dangerous - such as water, chemicals, or gas - it must be kept from escaping.
- If it escapes and causes damage, responsibility may arise automatically even without carelessness.

KED

Keep dangerous thing -> Escape -> Damage

বিপজজনক বস্তু রাখা, তা বেরিয়ে যাওয়া, এবং ক্ষতি হওয়া।

Negligence	Strict liability
Plaintiff must prove duty, breach, and damage.	No need to prove negligence or fault.
Focus on standard of conduct.	Focus on ownership/control and the harmful escape or condition.
Carelessness is central.	Responsibility can exist even when the person did nothing careless.

Possible exam question: Distinguish negligence from strict liability.

- Negligence requires proof of fault through duty, breach, and damage.
- Strict liability does not require proof of negligence.
- Explain the ownership/control and dangerous escape examples.

9 Remedies in Tort

Remedies are divided into judicial and extrajudicial remedies.

Type	Who provides it?	Meaning
Judicial remedy	Court	A remedy awarded through legal proceedings
Extrajudicial remedy	Lawful self-help	A limited form of self-help without first obtaining a court award

J-E

Judicial = Judge; Extrajudicial = permitted self-help

আদালতের প্রতিকার বনাম আইনসম্মত সীমিত আত্মসহায়তা।

Judicial remedies are divided into compensatory and non-compensatory remedies.

Compensatory principle: The court tries to put the injured person in the same position as before the harm. The slides call this restitutio in integrum.

সহজ বাংলা: ক্ষতিপূরণের উদ্দেশ্য হলো অর্থের মাধ্যমে ক্ষতিগ্রস্ত ব্যক্তিকে যতটা সম্ভব আগের অবস্থায় ফিরিয়ে দেওয়া।

Non-compensatory damages	Purpose or situation	Example shown in slides
Contemtpuous	Claim is considered unnecessary or trivial; very small award	Technical defamation

Non-compensatory damages	Purpose or situation	Example shown in slides
Nominal	No actual loss is proved, but a legal right was violated	Trespass
Punitive / Exemplary	Punishes the wrongdoer; may be added to compensatory damages	Large monetary award

CNP	Contemptuous - Nominal - Punitive তুচ্ছ দাবি, অধিকার লঙ্ঘনের স্বীকৃতি, এবং শাস্তিমূলক ক্ষতিপূরণ।
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10 Extrajudicial Remedies

Some tort situations allow a limited degree of self-help.

The slides state that legal action is not always necessary to protect a person against a tort or to put right the damage. In some cases, the law permits limited self-help.

Example	Easy explanation
Expulsion of trespasser	Removing an intruder from property within lawful limits
Re-entry on land	Reclaiming land from an unlawful occupier within lawful limits

Exam caution: Extrajudicial remedy does not mean unlimited force. In an answer, use the phrase "a degree of self-help permitted by law".

Possible exam question: Classify remedies in tort.

- Start with judicial and extrajudicial remedies.
- Divide judicial remedies into compensatory and non-compensatory.
- Explain restitutio in integrum.
- List contemptuous, nominal, and punitive damages.
- Give expulsion of trespasser and re-entry on land as extrajudicial examples.

11 Defenses in Tort

A valid defense may defeat or reduce a claim even when the tort is proved.

The plaintiff may prove the requirements of a tort but still lose if the defendant establishes a valid defense. The general burden of proving a defense rests with the defendant.

Defense	Effect	Key point
Contributory negligence	Reduces damages by apportioning loss	The plaintiff also contributed to the harm.
Consent - volenti non fit injuria	Complete defense if requirements are met	The plaintiff voluntarily accepted the risk with full knowledge.
Illegality	Law may refuse protection	Claim is linked to illegal conduct.
Necessity	May justify an otherwise wrongful act	The act was needed to prevent greater harm.
Mistake of fact	Usually not a valid tort defense	Honest factual mistake normally does not excuse the wrong.

Case Donelan v Donelan (1993)

In the slide case study, both parties were heavily intoxicated. The claimant asked an inexperienced driver to drive a powerful car and knew about the inexperience. The judge treated the claimant as the dominant party, and damages were reduced by 75% for contributory negligence.

Consent rule: Volenti non fit injuria means "No harm is done to a person who consents." The plaintiff must voluntarily accept the risk with full knowledge of its nature and extent.

C-C-I-N-M

Contributory - Consent - Illegality - Necessity - Mistake

পাঁচটি defense heading দ্রুত মনে রাখার code।

Possible exam question: Explain contributory negligence and consent as defenses.

- Contributory negligence allows apportionment and reduction of damages.
- Use Donelan v Donelan and the 75% reduction from the slides.
- Consent requires voluntary acceptance and full knowledge of risk.
- State that consent can be a complete defense.

12 One-Page Master Revision

Use this page for the final hour before the exam.

Topic	Memory code	One-line rule
Meaning of tort	Civil wrong -> compensation	A civil wrongdoing causing injury to protected interests.
Negligence	DBD	Duty, breach, and damage must all be proved.
Duty test	FPF	Foreseeability, proximity, fair-just-reasonable.
Professional breach	S-S-D	Special skill judged by competent professional standard; damage follows.
Causation	But-for	Without the negligence, would the harm have happened?
Protected harm	PPE	Personal injury, property damage, economic loss.
Pure economic loss	D-L-P	Damage and linked profit recoverable; pure shutdown profit not.
Strict liability	KED	Keep dangerous thing, escape, damage; fault need not be proved.
Remedies	J-E / CNP	Judicial or self-help; contemptuous, nominal, punitive.
Defenses	C-C-I-N-M	Contributory, consent, illegality, necessity, mistake.

Negligence answer sequence: Definition -> Duty -> Breach -> Causation -> Damage -> Defenses -> Conclusion

Case list: Donoghue v Stevenson (1932); Caparo Industries v Dickman (1990); Spartan Steel v Martin (1972); Donelan v Donelan (1993).

13 Essential Vocabulary with Bangla Meanings

English	বাংলা অর্থ	English	বাংলা অর্থ
Tort	দেওয়ানি অন্যায়	Negligence	অবহেলা
Plaintiff	বাদী / ক্ষতিগ্রস্ত ব্যক্তি	Defendant	বিবাদী
Wrongdoer	অন্যায়কারী	Duty of care	যত্ন নেওয়ার আইনগত দায়িত্ব

English	বাংলা অর্থ	English	বাংলা অর্থ
Breach	দায়িত্ব লঙ্ঘন	Standard of care	যত্নের মানদণ্ড
Foreseeability	পূর্বানুমানযোগ্যতা	Proximity	ঘনিষ্ঠ বা সরাসরি সম্পর্ক
Reasonable	যুক্তিসঙ্গত	Competent	দক্ষ ও যোগ্য
Causation	কারণগত সম্পর্ক	Causal link	কারণ ও ফলের সংযোগ
Damage	ক্ষতি	Intervening event	মধ্যবর্তী নতুন ঘটনা
Multiple causes	একাধিক কারণ	Personal injury	ব্যক্তিগত / শারীরিক আঘাত
Psychiatric injury	মানসিক আঘাত	Property damage	সম্পত্তির ক্ষতি
Economic loss	আর্থিক ক্ষতি	Pure economic loss	স্বতন্ত্র বিশুদ্ধ আর্থিক ক্ষতি
Recoverable	ক্ষতিপূরণ হিসেবে আদায়যোগ্য	Liability	আইনগত দায়
Strict liability	দোষ প্রমাণ ছাড়াই দায়	Compensatory	ক্ষতিপূরণমূলক
Non-compensatory	ক্ষতিপূরণ ব্যতীত অন্য উদ্দেশ্যমূলক	Nominal damages	প্রতীকী ক্ষতিপূরণ
Punitive damages	শাস্তিমূলক ক্ষতিপূরণ	Extrajudicial	আদালতের বাইরে আইনসম্মত
Defense	আত্মপক্ষ সমর্থনের আইনি যুক্তি	Burden of proof	প্রমাণের দায়
Contributory negligence	বাদীর অংশগ্রহণমূলক অবহেলা	Consent	সম্মতি
Illegality	বেআইনিতা	Necessity	অপরিহার্যতা
Mistake of fact	তথ্যগত ভুল	Trespass	অনধিকার প্রবেশ
Apportionment	দায় বা ক্ষতি ভাগ করে নির্ধারণ	Compensation	ক্ষতিপূরণ

14 Term Final Practice Questions

A. Short questions (3-5 marks)

1. Define tort and identify the plaintiff and defendant.
2. State the three elements of negligence.
3. What is the neighbour principle?
4. State the Caparo three-stage test.
5. Define breach of duty of care.
6. What is the professional standard of care?
7. What is causation?
8. Explain the but-for test.
9. What is pure economic loss?
10. Define strict liability.
11. Distinguish judicial and extrajudicial remedies.
12. What is volenti non fit injuria?

B. Broad questions (8-12 marks)

1. Explain the elements of the tort of negligence with suitable construction examples.
2. Discuss the development of duty of care from Donoghue v Stevenson to Caparo Industries v Dickman.
3. Explain breach, professional standard of care, causation, and damage.
4. Discuss economic loss and pure economic loss with reference to Spartan Steel v Martin.
5. Distinguish negligence and strict liability.
6. Classify remedies in tort and explain the main categories of damages.
7. Discuss the defenses available in tort, including contributory negligence and consent.

Answer-writing formula: Definition -> Rule/elements -> Explanation -> Case/example -> Application -> Conclusion

15 Self-Test: Check Your Recall

1. The three negligence elements are:

A. Offer, acceptance, damage B. Duty, breach, damage C. Fault, crime, punishment

2. Caparo test includes:

A. Foreseeability, proximity, fair-just-reasonable B. Intention, consent, profit C. Ownership, escape, contract

3. If no damage occurs:

A. Negligence claim always succeeds B. There is no claim in negligence C. Strict liability always applies

4. Spartan Steel pure shutdown profit was:

A. Recoverable B. Not recoverable C. Punitive damage

5. Strict liability means:

A. Fault must be proved B. Liability without proving fault C. Only criminal liability

6. Nominal damages:

A. Punish heavily B. Confirm a right despite no actual loss C. Divide loss

7. Contributory negligence:

A. May reduce damages B. Always cancels all liability C. Is the same as necessity

8. Volenti non fit injuria is based on:

A. Consent with full knowledge B. Mistake of fact C. Property damage

Answer key: 1-B, 2-A, 3-B, 4-B, 5-B, 6-B, 7-A, 8-A

16 Final 30-Minute Revision Plan

1. 5 minutes: revise DBD, FPF, PPE, KED, J-E, CNP, C-C-I-N-M.

2. 5 minutes: write the four case names and one-line principles.

3. 10 minutes: practise one negligence answer using Duty -> Breach -> Causation -> Damage.

4. 5 minutes: revise remedies and defenses tables.

5. 5 minutes: scan Bangla vocabulary for difficult legal words.

Final memory sentence: A tort claim asks: Who owed care, who broke the standard, what damage followed, what remedy is available, and what defense may apply?

Source note: This study guide is based on the uploaded 41-page BECM 3107 Law of Tort lecture slides and keeps their stated organization, cases, examples, and terminology. It is a revision aid, not independent legal advice.